

HOUSE No. 955

The Commonwealth of Massachusetts

PRESENTED BY:

Jessica Ann Giannino and Jeffrey Rosario Turco

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to solid waste byproduct management and control.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Jessica Ann Giannino</i>	<i>16th Suffolk</i>	<i>1/17/2025</i>
<i>Jeffrey Rosario Turco</i>	<i>19th Suffolk</i>	<i>4/8/2025</i>
<i>Steven Ultrino</i>	<i>33rd Middlesex</i>	<i>4/8/2025</i>

HOUSE No. 955

By Representatives Giannino of Revere and Turco of Winthrop, a petition (accompanied by bill, House, No. 955) of Jessica Ann Giannino relative to solid waste byproduct management and control. Environment and Natural Resources.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to solid waste byproduct management and control.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Section 150A of Chapter 111 of the General Laws, as appearing in the 2018
2 Official Edition, is hereby amended by inserting after the fourth paragraph the following
3 paragraph:- The board of health of a city or town that is within one-half mile of a facility that is
4 being operated, maintained or expanded may adopt reasonable rules and regulations to protect
5 the public health from unnecessary or excessive noise; frequent and unwarranted smoke; and
6 obnoxious odors. Said board of health shall have the authority to issue reasonable orders,
7 citations and civil penalties for any violation of the board of health's rules and regulations
8 relating to controlling such noise, smoke or obnoxious orders.

9 SECTION 2. (a) Section 150A1/2 of said chapter 111 of the General Laws, as so
10 appearing, is hereby amended by striking out clause (9) and inserting in place thereof the
11 following clause:-

(9) the potential for adverse impacts on air quality to include, frequent and unwarranted smoke, and strong and obnoxious odors.

(b) Not later than 6 months after the effective date of this act, the department shall promulgate or revise any such rules and regulations necessary to implement the provisions of this section.

SECTION 3. (a) Said section 150A1/2 of said chapter 111 of the General Laws, as so appearing, is hereby further amended by inserting the word “from”, in line 21, the following word:- excessive

(b) Not later than 6 months after the effective date of this act, the department shall promulgate or revise any such rules and regulations necessary to implement the provisions of this section.

SECTION 4. (a) Section 150A1/2 of Chapter 111 of the General Laws, as appearing, Official Edition, is hereby amended by adding the following subsections at the end of the section:—

(18) the potential adverse impacts on municipalities containing Environmental Justice Population, (defined as a neighborhood whose annual median household income is equal to or less than 65 percent of the statewide median or whose population is made up 25 percent minority or lacking English language proficiency), within one mile of the proposed site including the potential adverse impacts on the considerations stated within this section for which site suitability standards and criteria are established.

(19) the potential for the site to be impacted by anticipated sea level rise or coastal storm surge associated with climate change.

(20) the proximity to and potential impacts of the site on designated Areas of Critical Environmental Concern.

(b) Not later than 6 months after the effective date of this act, the department shall promulgate or revise any such rules and regulations necessary to implement the provisions of this section.

SECTION 5. (a) Notwithstanding any general or special law to the contrary, no new landfill, monofill, or ash landfill shall be established in or adjacent to an area designated by the commonwealth as an area of critical environmental concern pursuant to subsection (7) of section 2 of chapter 21A of the General Laws.

(b) Not later than 6 months after the effective date of this act, the department shall promulgate or revise any such rules and regulations necessary to implement the provisions of this section.

SECTION 6. (a) Notwithstanding any general or special law to the contrary, the facility known as the WIN Waste Innovations Saugus Ash Landfill or Saugus Ash Monofill, 100 Salem Turnpike, Saugus, Massachusetts, 01906, (“Ash Landfill”) shall cease all operations and begin installing a final, permanent cap at the earliest of the following:

1. December 31, 2030.

2. Should the final two of the five drainage valleys (Valleys One and Two) of the Ash Landfill as described in the Environmental Notification Form Saugus Ash Monofill, submitted

by WIN Waste Innovations Saugus to the Massachusetts Environmental Policy Act Office and dated May, 2016, (the “ENF”) be filled to a 2% valley slope as described in the ENF. The area proposed to be filled comprises 39 acres and 400,000 cubic yards of airspace according to the ENF.

3. Should WIN Waste Innovations Saugus dispose of 450,000 tons of ash or other material at the Ash Landfill beginning January 1, 2026.

(b) Not later than 6 months after the effective date of this act, the department shall promulgate or revise any such rules and regulations necessary to implement the provisions of this section.

SECTION 7. (a) Notwithstanding any general or special law to the contrary, the department of environmental protection shall not approve or issue a license for a third burner at the WIN Waste Innovations facility in the town of Saugus or any other solid waste disposal process that would result in additional air emissions or ash disposal at the Saugus incinerator and adjacent ash landfill on Route 107.

(b) Not later than 6 months after the effective date of this act, the department shall promulgate or revise any such rules and regulations necessary to implement the provisions of this section.